

Mohd. Kasim v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 January 2015 · WRIT - C No. - 2052 of 2015 · **Writ disposed; EE to decide fresh application in accordance with law.**

HEADNOTE

After acquittal in a criminal electricity-theft case, the consumer invoked clause 8.2(x) of the U.P. Electricity Supply Code, 2005 for withdrawal of charges and restoration of supply. The High Court did not apply the clause on merits. By consent it disposed of the writ, directing the Executive Engineer, Chandausi, to consider and decide a fresh application by a reasoned speaking order in accordance with law, preferably within six weeks.

FACTUAL SUMMARY

The petitioner was alleged to have committed theft of electricity and a criminal case was instituted against him. The trial court acquitted him. Invoking clause 8.2(x) of the U.P. Electricity Supply Code, 2005, he sought withdrawal of the charges and restoration of his connection. He had already made representations to the Executive Engineer, Electricity Distribution Division, Chandausi, District Sambhal, which remained undecided. He then filed this writ petition against Paschimanchal Vidyut Vitran Nigam Ltd.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2(x)

post-acquittal restoration after theft prosecution

HOLDING

The Court did not itself apply clause 8.2(x) or order withdrawal of theft charges or restoration of supply. By consent it disposed of the writ with a direction that if the acquitted consumer files a fresh application before the Executive Engineer with a certified copy of the order, the application shall be considered and decided in accordance with law by a reasoned speaking order, preferably within six weeks. ¶ 2

PRINCIPLE TAGS

clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment After acquittal in a criminal electricity-theft case, the consumer invoked clause 8.2(x) of the U.P. Electricity Supply Code, 2005 for withdrawal of charges and restoration of supply. The High Court did not apply the clause on merits.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.2(X) REQUIRED WITHDRAWAL OF THE THEFT ASSESSMENT AND RESTORATION OF THE CONNECTION AFTER CRIMINAL ACQUITTAL

¶ 1-2